

24NWCV03311 24NWCV03311

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Division: Civil Law and Motion

Department: C

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JESUS

VALDES MARQUEZ vs GERARDO VALLES, Case No. 24NWCV03311

Trial

in this premises liability action is set for July 20, 2026. Defendant Gerardo Valles applies ex parte for an order: 1) compelling Darryl Willoughby, M.D. to appear and testify at deposition and for production of documents, and 2) compelling “witnesses who have been personally served or will be personally served with trial subpoenas to appear as ordered by the trial subpoena.” The latter category of witnesses include Christian Galicia, PA-C, Jonathan Ghiam, D.O., and Susannah Empson, M.D.. Plaintiff Jesus Valdes Marquez does not object to an order compelling Darryl Willoughby, M.D. to testify at deposition and at trial, but Plaintiff does object to an order compelling the remaining witnesses to testify at trial because neither Galicia nor Ghiam have been served with trial subpoenas, and Empson has not been properly designated as a non-retained expert. The ex parte application is GRANTED in part and DENIED in part. It is GRANTED with respect to Darryl Willoughby, M.D.. In all other respects, the ex parte application is DENIED. Defendant has failed to act with due diligence as to Galicia, and neither Ghiam nor Empson have been properly designated as experts. (See, 7/2/26 Minute Order re Defendant’s Motion for Leave to Submit Tardy Expert Designation.) Because the Court is currently engaged in trial in another matter, trial in this case is ADVANCED to today’s date and CONTINUED. The Court will confer with the parties regarding a new trial date and a time frame for Dr. Willoughby’s deposition. Moving party to give notice.